



CHAPTER cxv.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 relating to Airdrie Coatbridge and Culter and District.

A.D. 1905.

[4th August 1905.]

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act :

45 & 46 Vict.
c. 56.
51 & 52 Vict.
c. 12.
53 & 54 Vict.
c. 13.
2 Edw. 7.
c. 35.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 8) Act 1905.

Short title.

2. The several Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect.

Orders in
schedule
confirmed.

A.D. 1905.

SCHEDULE.

LIST OF ORDERS.

1. AIRDRIE.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the Scottish House-to-House Electricity Company Limited.
2. COATBRIDGE.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the Scottish House-to-House Electricity Company Limited.
3. CULTS AND DISTRICT.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to Edward Joseph Bonner Lowdon and Kenneth Lowdon.

AIRDRIE BURGH ELECTRIC LIGHTING.

A.D. 1905.

Airdrie.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the Scottish House-to-House Electricity Company Limited in respect of the Burgh of Airdrie in the County of Lanark.

WHEREAS by the Airdrie Burgh Electric Lighting Order 1898 (herein-after referred to as "the Order of 1898") confirmed by the Electric Lighting Orders Confirmation (No. 1) Act 1898 the Provost Magistrates and Town Council of the burgh of Airdrie (herein-after referred to as "the Council") were authorised to supply energy as defined in that Order in the Burgh of Airdrie :

And whereas by section 43 of the Clyde Valley Electrical Power Act 1901 (herein-after called the "Clyde Valley Act") It is amongst other things enacted that energy shall not be supplied under that Act by the Clyde Valley Electrical Power Company (herein-after called "the Clyde Valley Company") in any area being at the commencement of that Act the area of supply of any authorised distributors under that Act except with the consent of those distributors and that if at any time after the commencement of that Act any company become authorised distributors in any area within the area of supply under that Act the Clyde Valley Company shall be subject to any provisions which may be made by the Provisional Order under which the distributors become authorised as to the powers of the Clyde Valley Company to supply within the area of supply of the distributors and such provisions may be made in any Provisional Order under the Electric Lighting Acts :

And whereas at the commencement of the Clyde Valley Act the Council were authorised distributors within the meaning of that Act as respects the area of supply under the Order of 1898 and that area is within the area of supply under the Clyde Valley Act :

And whereas by section 76 of the Clyde Valley Act it is enacted that if the Scottish House-to-House Electricity Supply Company Limited (herein-after called "the Company") became the Undertakers under the Order of 1898 they should in respect of the area of supply defined in that Order and during such time as they continued to be such Undertakers be deemed to have been authorised distributors within the meaning of that Act at the commencement of that Act provided that in that event the Council should also be deemed and continue to be deemed to be such distributors :

And whereas by an agreement dated the twenty-sixth day of November one thousand nine hundred and one and made between the Council of the one part and the Company of the other part the Council transferred the undertaking authorised by the Order of 1898 (herein-after referred to as "the undertaking") and all their rights duties and liabilities under the Order of 1898 to the Company and the Company became the Undertakers for the purposes of the Order of 1898 subject to the exceptions and modifications and upon the terms in the said agreement appearing :

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(No. 8) Act, 1905.

A.D. 1905.
—•—
Airdrie.

And whereas it is expedient that the Company be empowered to sell the undertaking and transfer the rights powers duties and liabilities so transferred to them as aforesaid:

And whereas it is expedient that provision should be made as to the power of the Clyde Valley Company to supply within the area of supply under the Order of 1898:

The following provisions shall have effect under this Order:—

Short title.

1. This Order may be cited as the Airdrie Burgh Electric Lighting Order 1905.

Exception of
Electric Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 are not incorporated with this Order.

As to transfer
of under-
taking.

3.—(1) The Company may within one year after the commencement of this Order (or such extended period not exceeding in the whole two years after the commencement of this Order as the Board of Trade allow) with the consent of and upon such terms and conditions as may be approved by the Board of Trade transfer the undertaking to a company to be formed under the name of the Scottish Electricity Supply Company Limited and registered under the Companies Acts 1862 to 1900 or such other company to be formed for the purpose as the Board of Trade may approve and on any such transfer the rights powers authorities obligations and liabilities of the Company in respect of the undertaking shall subject to such exceptions and modifications as the Board of Trade may impose be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of the Order of 1898 and the exceptions and modifications imposed by the Board of Trade become the Undertakers for the purposes of the Order of 1898.

(2) As from the date of any such transfer as aforesaid the company to whom the transfer is made and not the Scottish House-to-House Electricity Company Limited shall so long as they are Undertakers under the Order of 1898 be deemed to have been at the commencement of the Clyde Valley Act authorised distributors within the meaning of that Act as respects the area of supply under the Order of 1898 provided that the Council shall also be deemed and continue to be deemed to be such distributors.

Power to enter
into agree-
ments with
Clyde Valley
Electrical
Power Com-
pany.

4. Nothing in the Order of 1898 shall be construed as preventing the Undertakers under that Order as amended by this Order from entering into or carrying into effect any contract agreement or arrangement which under the Clyde Valley Electrical Power Act 1901 may be entered into and carried into effect by the Clyde Valley Electrical Power Company and any authorised distributors nor from purchasing or acquiring the undertaking authorised by the Coatbridge Electric Supply Order 1890.

Commence-
ment of Order.

5. This Order shall come into force upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

COATBRIDGE ELECTRIC LIGHTING.

A.D. 1905.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the Scottish House-to-House Electricity Company Limited in respect of the Burgh of Coatbridge in the County of Lanark.

WHEREAS by the Coatbridge Electric Supply Order 1890 (herein-after referred to as "the Order of 1890") confirmed by the Electric Lighting Orders Confirmation (No. 10) Act 1890 the Scottish House-to-House Electricity Company Limited (herein-after referred to as "the Company") were authorised to supply electricity as defined in that Order in the burgh of Coatbridge :

And whereas by section 43 of the Clyde Valley Electrical Power Act 1901 (herein-after called "the Clyde Valley Act") it is amongst other things enacted that energy shall not be supplied under that Act by the Clyde Valley Electrical Power Company (herein-after called the "Clyde Valley Company") in any area being at the commencement of that Act the area of supply of any authorised distributors within the meaning of that Act except with the consent of those distributors and that if at any time after the commencement of that Act any company become authorised distributors in any area within the area of supply under that Act the Clyde Valley Company shall be subject to any provisions which may be made by the Provisional Order under which the distributors become authorised as to the powers of the Clyde Valley Company to supply within the area of supply of the distributors and such provisions may be made in any Provisional Order under the Electric Lighting Acts :

And whereas the Company were at the commencement of the Clyde Valley Act authorised distributors within the meaning of that Act and the area of supply under the Order of 1890 is within the area of supply under that Act :

And whereas it is expedient that the Company be empowered to transfer the undertaking authorised by the Order of 1890 (herein-after referred to as "the undertaking") and their rights powers authorities and liabilities in respect of the undertaking :

And whereas it is expedient that provision should be made as to the power of the Clyde Valley Company to supply within the area of supply under the Order of 1890 in the event of any such transfer as aforesaid :

The following provisions shall have effect under this Order :—

1. This Order may be cited as the Coatbridge Electric Lighting Order 1905. Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 are not incorporated with this Order.

Exception of
Electric Lighting
(Clauses) Act
1899.

3.—(1) The Company may within one year after the commencement of this Order (or such extended period not exceeding in the whole two years after the commencement of this Order as the Board of Trade allow) with the consent of and upon such terms and conditions as may be approved by the

As to transfer
of under-
taking.

[Ch. cxv.] *Electric Lighting Orders Confirmation* [5 EDW. 7.]
(No. 8) Act, 1905.

A.D. 1905. Board of Trade transfer the undertaking to a company to be formed under the name of the Scottish Electricity Supply Company Limited and registered under the Companies Acts 1862 to 1900 or such other company to be formed for the purpose as the Board of Trade may approve and on any such transfer the rights powers authorities obligations and liabilities of the Company in respect of the undertaking shall subject to such exceptions and modifications as the Board of Trade may impose be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of the Order of 1890 and the exceptions and modifications imposed by the Board of Trade become the Undertakers for the purposes of the Order of 1890.

Coatbridge.

(2) As from the date of any such transfer the company to whom the transfer is made and not the Scottish House-to-House Electricity Company Limited shall so long as they are Undertakers under the Order of 1890 be deemed to have been at the commencement of the Clyde Valley Act authorised distributors within the meaning of that Act as respects the area of supply under the Order of 1890.

Power to enter into agreements with Clyde Valley Electrical Power Company.

4. Nothing in the Order of 1890 shall be construed as preventing the Undertakers under that Order as amended by this Order from entering into or carrying into effect any contract agreement or arrangement which under the Clyde Valley Electrical Power Act 1901 may be entered into and carried into effect by the Clyde Valley Electrical Power Company and any authorised distributors nor from purchasing or acquiring the undertaking authorised by the Airdrie Burgh Electric Lighting Order 1898.

Commencement of Order.

5. This Order shall come into force upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

CULTS AND DISTRICT ELECTRIC LIGHTING.

Cults and District.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to Edward Joseph Bonner Lowdon and Kenneth Lowdon in respect of a portion of the Parish of Peterculter in the County of Aberdeen.

Short title.

1. This Order may be cited as the Cults and District Electric Lighting Order 1905.

Incorporation of Electric Lighting (Clauses) Act 1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are Edward Joseph Bonner Lowdon and Kenneth Lowdon electrical engineers carrying on business under the name or style of Lowdon Brothers

[5 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxv.]
(No. 8) Act, 1905.

and Company whose address is Temple Electric Works Dundee in the county of Forfar. A.D. 1905.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. *Cults and District.*
Area of supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the tramway which is also mentioned in that schedule. Power to break up streets &c.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. Compulsory works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. Maximum prices.

8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is five hundred pounds. Deposit.

9.—(1) The local authority may at any time after the commencement of this Order and before the eleventh day of November one thousand nine hundred and twelve by notice in writing require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order upon such terms as may be agreed upon or as failing agreement shall be determined by arbitration. Purchase by local authority.

(2) The Board of Trade may determine any question which arises with reference to the purchase which is not to be determined by arbitration and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(3) From the date on which the purchase takes effect the undertaking shall vest in the local authority freed from all debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers under the principal Act or this Order in relation to the supply of electricity within the area of supply shall absolutely cease and determine and shall vest in the local authority and that authority shall subject to the provisions of this Order be the Undertakers for the purposes of this Order.

(4) The power of the local authority to purchase under this section shall be in addition to and not in derogation of the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

10.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole twelve months as the Board of Trade allow after the commencement of this Order Undertaking to be transferred to a registered company.

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(No. 8) Act, 1905.

A.D. 1905. the Undertakers transfer the undertaking to a limited company registered
Cults and
District, under the Companies Acts 1862 to 1900 and approved by the Board of Trade
for the purpose.

(2) Within that period the Undertakers may transfer and the Company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect to the undertaking shall be transferred to and may be exercised by and shall attach to the Company to whom the transfer is made and that Company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

Commence-
ment of Order.

11. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

S C H E D U L E S.

FIRST SCHEDULE.

AREA OF SUPPLY.

So much of the parish of Peterculter in the county of Aberdeen as is situate between—

- (1) The municipal boundary of the city and royal burgh, of Aberdeen on the east ;
- (2) An imaginary line drawn along the road known as the Oldfold Road for a distance of two hundred yards or thereabouts from its junction with the North Deeside Turnpike and produced in a south-easterly direction to the north bank of the River Dee and in a north-westerly direction to a point distant one and a half miles or thereabouts measured along the said line from the north bank of the River Dee on the west ;
- (3) The north bank of the River Dee on the south ; and
- (4) The north boundary of the said parish from its junction with the said municipal boundary to the road leading to the Convalescent Hospital of the Aberdeen Infirmary Board and an imaginary line drawn thence in a westerly direction to the northern extremity of the western boundary of the area of supply herein-before described on the north :

Provided that in case of difference between the above description and the area as delineated on the deposited map the latter shall prevail.

SECOND SCHEDULE.

A.D. 1905.

List of Streets not repairable by the Local Authority and Tramway which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Cults and District.

(a) STREETS:—

The unnamed road immediately to the west of Bielside Station Road leading southwards from the North Deeside Turnpike for a distance of one hundred yards from the said turnpike.

The unnamed road at right angles to the immediately preceding unnamed road from its junction therewith for a distance of fifty yards to the west and thirty yards to the east of the junction.

The Bielside Station Road from its junction with the North Deeside Turnpike to a point fifty yards south thereof.

The unnamed road leading from the North Deeside Turnpike past Cults Established Church to a point fifty yards north of the junction.

The unnamed road leading from the North Deeside Turnpike to Eddislea for a distance of fifty yards from the junction of the road under description with the said turnpike.

The unnamed road leading from the North Deeside Turnpike under the railway bridge at West Cults Station along the north side of the Allan Park eastwards to the junction with the road leading direct from the North Deeside Turnpike to the said park but excluding the portion of the said unnamed road underneath the said bridge and ten yards of the said road on each side of the said bridge.

The unnamed road on the west side of Peterculter School grounds.

The unnamed road on the east side of said school grounds from its junction with the North Deeside Turnpike to a point opposite the house known as "Allandale."

Cults Avenue from its junction with the North Deeside Turnpike for a distance of one hundred yards.

Manor Place.

The unnamed road at right angles to the unnamed road leading southwards from Cults Square from its junction therewith to a point opposite Birchwood.

The Mill Den Road for a distance of thirty yards southwards from its junction with the North Deeside Turnpike.

Primrose Hill Road.

The unnamed road leading northwards from the North Deeside Turnpike to the Convalescent Hospital then eastwards to Cliff House Gate.

Westerton Road but excluding the portion of the said road carried by the bridge over the railway of the Great North of Scotland Railway Company and ten yards of the said road on each side of the said bridge.

Oldfold Road.

(b) TRAMWAY:—

The tramway of the Aberdeen Suburban Tramways Company.

A.D. 1905.

THIRD SCHEDULE.

*Cults and
District.*

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

The North Deeside Turnpike Road from a point opposite Middleton House on the east to the western boundary of the area of supply.

The unnamed road immediately to the west of Bielside Station Road leading southwards from the North Deeside Turnpike for a distance of 100 yards from the said turnpike.

The unnamed road at right angles to the immediately preceding unnamed road from its junction therewith for a distance of 50 yards to the west and 30 yards to the east of the junction.

The Dalhibity or Baillieswells Road from its junction with the North Deeside Turnpike northwards for a distance of 350 yards.

The Bielside Station Road from its junction with the North Deeside Turnpike to a point 50 yards south thereof.

The unnamed road leading from the North Deeside Turnpike past Cults Established Church to a point 50 yards north of the junction.

The unnamed road leading from the North Deeside Turnpike to Eddislea for a distance of 50 yards from the junction of the road under description with the said turnpike.

The unnamed road leading from the North Deeside Turnpike under the railway bridge at West Cults Station along the north side of the Allan Park eastwards to the junction with the road leading direct from the North Deeside Turnpike to the said Park but excluding the portion of the said unnamed road underneath the said bridge and 10 yards of the said road on each side of the said bridge.

The unnamed road on the west side of Peterculter School grounds.

The unnamed road on the east side of said school grounds from its junction with the North Deeside Turnpike to a point opposite the house known as "Allandale."

Cults Avenue from its junction with the North Deeside Turnpike for a distance northwards of 100 yards.

Kirk Brae.

Manor Place.

The unnamed road at right angles to the unnamed road leading southwards from Cults Square from its junction therewith to a point opposite Birchwood.

The Mill Den Road for a distance of 30 yards southwards from its junction with the North Deeside Turnpike.

Primrose Hill Road.

The unnamed road leading northwards from the North Deeside Turnpike to the Convalescent Hospital then eastwards to a point opposite Cliff House Gate.

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*Culls and
District.*

Westerton Road but excluding the portion of the said road carried by the bridge over the railway of the Great North of Scotland Railway Company and 10 yards of the said road on each side of the said bridge.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

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